

Court No. - 39

Case :- WRIT - C No. - 27820 of 2022

Petitioner :- Ranvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

As prayed by the learned counsel for the petitioner, put up this matter on 01.11.2022 as fresh.

Order Date :- 13.10.2022

Himanshu

Court No. - 39

Case :- WRIT - C No. - 27820 of 2022

Petitioner :- Ranvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

No one has put in appearance on behalf of the petitioner to press the present writ petition.

This petition is on the list of fresh cases since August, 2022 and the matter has been adjourned on the last occasion on the request of the counsel for the petitioner.

Sri Anuj Kumar Mishra holding brief of Sri Alok Mishra learned Advocate has put in appearance on behalf of respondent nos. 2 and 3.

The writ petition is, accordingly, **dismissed** for want of prosecution.

Order Date :- 22.11.2022

Brijesh

Court No. - 21

Case :- WRIT - C No. - 27820 of 2022

Petitioner :- Ranvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

As prayed, list this matter on 28.2.2023.

Order Date :- 20.2.2023

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(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 27820 of 2022

Petitioner :- Ranvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

List on 16.3.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.2.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 27820 of 2022

Petitioner :- Ranvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Alok Mishra counsel for the respondent-Electricity department,
seeks adjournment.

List on 29 March 2023.

Order Date :- 16.3.2023

skv

(Prashant Kumar, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 27820 of 2022

Petitioner :- Ranvir Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Pandey

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Civil Misc. Restoration Application No.2 of 2022

Heard Sri Sanjeev Kumar Pandey, learned counsel for the petitioner, Sri Anuj Tripathi, holding brief of Sri Alok Mishra, learned counsel for the respondent and learned Standing Counsel for the State.

The cause shown for non-appearance on 22.11.2022 is found to be sufficient.

Accordingly, the order dated 22.11.2022 is hereby recalled.

The writ petition is restored to its original number.

Order on the Memo of the writ petition

Heard Sri Sanjeev Kumar Pandey, learned counsel for the petitioner, Sri Anuj Tripathi, holding brief of Sri Alok Mishra, learned counsel for the respondent and learned Standing Counsel for the State.

The petitioner has challenged the order dated 01.07.2022 passed by the Executive Engineer Viddhut Vitran Khand IInd, Etah rejecting the objection of the petitioner filed under Section 6.8 of the U.P. Electricity Supply Code, 2005.

It is noteworthy that there was an inspection in the premises of the petitioner on 25.06.2020 and he was found extracting electricity directly from the main line. It was followed by an order of final assessment and thereafter, a notice of demand.

The petitioner challenged the provisional assessment order and demand notice by filing Writ No.14657 of 2022 and it was disposed of by order dated 26.05.2022 directing the respondent-

Electricity Department to decide the objection, if filed by the petitioner under Section 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks.

In compliance of the said order, the impugned order has been passed holding that the petitioner was found committing theft and consequently, an order of final assessment was passed against him on 06.07.2021 followed by the demand notice challenged in the earlier writ petition.

The copy of the final assessment has been handed over to learned counsel for the petitioner in Court. It is noteworthy that petitioner has not challenged the order of final assessment but only the order dated 01.07.2022 by which, the objection of the petitioner filed after passing of the order of final assessment has been decided.

Learned counsel for the petitioner tried to contend that final assessment order is illegal as no notice or opportunity of hearing was given to the petitioner before passing the said order.

Since the order of final assessment is not under challenge before us, therefore, we decline to examine the contention and leave it open to the petitioner to challenge the order of final assessment in appropriate proceedings and in which case, the finding recorded in the impugned order will not come in his way and the challenge will be decided uninfluenced by the findings returned in the order dated 01.07.2022.

The petition stands **disposed of** accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.3.2023
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